

Before the
FEDERAL MARITIME COMMISSION
Washington, DC 20573
Docket No. 22-20
MSRF Inc. v. HMM Company Ltd.

**MSRF'S SUPPLEMENTAL MOTION FOR
CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS**

Pursuant to 46 C.F.R. §§ 502.5(b) and 502.69, Complainant MSRF, Inc. ("MSRF") hereby moves to supplement its motion for confidential treatment of certain materials included in MSRF's Appendix in Support of its Motion for Summary Decision, MSRF's Reply to Respondent's Opposition Brief and MSRF's Reply to Respondent's Proposed Findings of Fact.

1. On January 4, 2023, Administrative Law Judge Crovella entered an Order entering Confidentiality Stipulation and Protective Order.

2. Based upon the Protective Order, HMM produced certain documents as confidential.

3. On May 26, 2023, Administrative Law Judge Crovella entered an Order requesting the Parties to supplement their motions for confidential treatment to specifically identify the information in the Parties' exhibits which they seek to keep confidential and the basis for the request.

4. To comply with the May 26 Order, MSRF will resubmit (1) a revised public and non-public version of its appendix with the public version omitting the confidential documents, and (2) MSRF's Revised Reply to Respondent's Proposed Findings of Fact. MSRF only seeks to keep confidential the contents of the Service Contract and Amendments to the Service Contract,

the Damages Spreadsheet, and the booking information under the Service Contract. This information must remain confidential because it contains sensitive pricing information and other commercially sensitive rates and terms.

5. MSRF will also file a table listing confidential requests by bates number for materials that MSRF contends are entitled to confidential treatment.

WHEREFORE, MSRF, Inc. respectfully requests that its Supplemental Motion be granted, that it be given leave to file the confidential exhibits as part of a non-public version of the filing, and for all other relief deemed fair and proper.

Respectfully submitted,

CLARK HILL PLC

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CERTIFICATE OF SERVICE

I certify that on June 9, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of August 22, 2022.

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